

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
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U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

2012 APR 13 AM 11:23

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SHAWN JOHNSON and DANA MURRAY,

Plaintiffs,

CV 12 -

1820

-against-

COMPLAINT

Jury Trial Demanded

New York City Police Detectives WARREN ROHAN, Shield No. 2378; ROGELIO JAMES, Shield No. 2660, and Police Officers JOHN and JANE DOES 1 through 10, individually and in their official capacities, (the names John and Jane Doe being fictitious, as the true names are presently unknown),

GARAUFIS, J.

Defendants.
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J. ORENSTEIN

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiffs' rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiffs demand a trial by jury in this action.

PARTIES

6. Plaintiff Shawn Johnson (“Plaintiff Johnson”) is a resident of Kings County in the City and State of New York.

7. Plaintiff Dana Murray (“Plaintiff Murray”) is a resident of Kings County in the City and State of New York.

8. Defendant Police Detective Warren Rohan (“Detective Rohan”), at all times relevant herein, was an officer, employee and agent of the NYPD. Detective Rohan is sued in his individual and official capacities.

9. Defendant Police Detective Rogelio James (“Detective James”), at all times relevant herein, was an officer, employee and agent of the NYPD. Detective James is sued in his individual and official capacities.

10. At all times relevant defendants John and Jane Does 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiffs do not know the real names and shield numbers of defendants John and Jane Does 1 through 10.

11. At all times relevant herein, defendants John and Jane Does 1 through 10 were acting as agents, servants and employees of defendant City of New York and

the NYPD. Defendants John and Jane Does 1 through 10 are sued in their individual and official capacities.

12. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

13. At approximately 8:00 a.m. on June 12, 2010, Plaintiffs were lawfully in the vicinity of 1480 Prospect Place in Brooklyn, NY.

14. Plaintiffs were exiting St. Vincent's Catholic Medical Center, where they were participants in a methadone treatment program.

15. As Plaintiff stood outside the medical center, a group of officers came upon them.

16. The Officers grabbed Plaintiffs and threw them against a wall.

17. Plaintiffs' property was confiscated, including the methadone bottles that were distributed to them as part of their treatment.

18. Plaintiffs were transported to the precinct.

19. A little after 8:00 p.m. on June 12, 2010 Plaintiffs were transported to Brooklyn Central Booking.

20. The defendants falsely informed employees of the Kings County District Attorney's office that they observed Plaintiffs exchanging quantities of methadone with each other on the street.

21. In fact, each of Plaintiffs' methadone bottles were sealed, and Plaintiffs were drinking coffee.

22. While at the precinct Plaintiffs explained that they were ill due to their withdrawal from methadone. Plaintiffs' requests to go to the hospital were ignored.

23. At around 8:00 a.m. on June 13, 2010 Plaintiffs were arraigned in Kings County Criminal Court, where they were each released on their own recognizance, around 24 hours after their arrest.

24. On September 25, 2011, after more than 8 court appearances, Plaintiffs' charges were dismissed and sealed.

25. As a result of their methadone being confiscated, Plaintiffs have suffered withdrawal symptoms.

26. Plaintiffs suffered damage as a result of defendants' actions. Plaintiff were deprived of their liberty, suffered emotional distress, mental anguish, fear, pain, symptoms related to denial of medication, anxiety, embarrassment, humiliation, and damage to their reputations.

FIRST CLAIM

Unlawful Stop and Search

27. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

28. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiffs without reasonable suspicion.

29. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein before alleged.

SECOND CLAIM

False Arrest

30. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

31. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiffs without probable cause.

32. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein before alleged.

THIRD CLAIM

Malicious Prosecution

33. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

34. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiffs under 42 U.S.C. § 1983 for the violation of their

constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

35. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiffs of their constitutional rights. The prosecution by defendants of plaintiffs constituted malicious prosecution in that there was no basis for the plaintiffs' arrest, yet defendants continued with the prosecution, which was resolved in plaintiffs' favor.

36. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

FOURTH CLAIM

Denial Of Constitutional Right To Fair Trial

37. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

38. The individual defendants created false evidence against Plaintiffs.

39. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

40. In creating false evidence against Plaintiffs, and in forwarding false information to prosecutors, the individual defendants violated Plaintiffs' constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

41. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein before alleged.

FIFTH CLAIM

Deliberate Indifference to Safety/Medical Needs

42. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

43. The individual defendants were of a risk to plaintiffs' safety and a need for medical care and failed to act in deliberate indifference to plaintiffs' needs.

44. Accordingly, defendants violated the Fourteenth Amendment because they acted with deliberate indifference to plaintiffs' medical needs and safety.

45. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein before alleged.

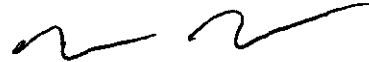
PRAYER FOR RELIEF

WHEREFORE, plaintiffs respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: April 11, 2012
New York, New York

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